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Gonzalez v. Ford Motor Company,

et al., Case No. 23PSCV03765

ORDER ON MOTION

FOR SUMMARY ADJUDICATION

1. Defendant Ford Motor Company's Motion for Summary Adjudication

to Plaintiff's Sixth Cause of Action for Fraudulent Inducement—Concealment is GRANTED.

2. Defendant Ford of Upland's Motion for Summary Adjudication to

Plaintiff's Seventh Cause of Action for Negligent Repairs is DENIED.

3. Defendant Ford Motor Company's Motion for Summary Adjudication

on Plaintiff's Claim for Punitive Damages is MOOT in light of the ruling on the

motion for summary adjudication as to the sixth cause of action.

Background

Plaintiff

Irma Gonzalez ("Plaintiff") alleges as follows:

On

October 26, 2022, Plaintiff purchased a used 2020 Ford Explorer, VIN No. 1FM5K8GC0LGB29409

("subject vehicle"). The subject vehicle is allegedly equipped with a defective 10-speed 10R80 transmission, which causes "hesitation

and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering,

and/or juddering." Ford Motor ("Ford Motor") knew or should have known about

the defect based on prior issued Technical Service Bulletins issued before the

sale of the subject vehicle.

Plaintiff also alleges Ford of

Upland (Upland Ford) negligently completed the warranty repairs.

On December

5, 2023, Plaintiff filed a complaint for statutory obligations, asserting

causes of action against Defendants and Does 1-10 for: (1) Violation of Civil

Code section 1793.2, subd. (d), (2) Violation of Civil Code section 1793.2,

subd. (b), (3) Violation of Civil Code section 1793.2, subd. (a)(3), (4) Breach

of Implied Warranty of Merchantability, (5) Violation of the Magnuson-Moss

Warranty Act, (6) Fraudulent Inducement – Concealment, and (7) Negligent Repair.

The

Final Status Conference and Trial are set for August 18 and September 1, 2026,

respectively.

Legal Standard

The

pleadings frame the issues for motions, “since it is those allegations to which the motion must

respond. (Citation.)” (Scolinos v.

Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29

Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or

summary adjudication “is to provide courts with a mechanism to cut through the

parties’ pleadings in order to determine whether, despite their allegations,

trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c,

subdivision (c), requires the trial judge to grant summary judgment if all the

evidence submitted, and ‘all inferences reasonably deducible from the evidence’

and uncontradicted by other inferences or evidence, show that there is no

triable issue as to any material fact and that the moving party is entitled to

judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7

Cal.App.4th 1110, 1119.)

“On a

motion for summary judgment, the initial burden is always on the moving party

to make a prima facie showing that there are no triable issues of material

fact.” (Scalf v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment

“has met his or her burden of showing that a cause of action has no merit if

the party has shown that one or more elements of the cause of action . . .

cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the

defendant . . . has met that burden, the burden shifts to the plaintiff . . .

to show that a triable issue of one or more material facts exists as to the

cause of action or a defense thereto.” (Ibid.)

“A

party may move for summary adjudication as to one or more causes of action

within an action... or one or more issues of duty if the party contends

that the cause of action has no merit, that there is no affirmative

defense to the cause of action that there is no merit to an affirmative

defense as to any cause of action, that there is no merit to a claim for

damages, as specified in Section 3294 of the Civil Code, or that one or more

defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A

motion for summary adjudication shall be granted only if it completely disposes

of a cause of action, an affirmative defense, a claim for damages, or an issue

of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When

deciding whether to grant summary judgment, the court must consider all of the

evidence set forth in the papers (except evidence to which the court has

sustained an objection), as well as all reasonable inference that may be drawn

from that evidence, in the light most favorable to the party opposing summary

judgment.” (Avivi

v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ.

Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict

in the evidence. It is not created by

speculation, conjecture, imagination or guesswork.” (Lyons

v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014

(citation omitted).)

Discussion

Defendant

Ford Motor moves for summary adjudication to the sixth cause of action in Plaintiff’s

complaint on the basis that Plaintiff lacks evidence for any basis of

fraudulent inducement—concealment, and the cause of action is barred by the

economic loss rule.

Defendant

Upland Ford moves for summary adjudication on the seventh cause of action for

negligent repairs on grounds of an inability to establish the elements for a

negligence claim.

Defendants

move for summary adjudication on the punitive damages claim on grounds of
insufficient evidence in support of the claim via the fraud cause of action.

Request

for Judicial Notice

The

court rules on Plaintiff's Request for Judicial Notice ("RJN") as follows:

Denied as to all exhibits. A court can take judicial notice of the existence of

the other trial court orders, but cannot take judicial notice of unpublished

rulings from other courts, including any and content in in any files for

purposes of the truth of the matter asserted. (Kilroy v. State of California (2004) 119 Cal.App.4th 140, 147-148; Sosinsky v. Grant (1992) 6

Cal.App.4th 1548, 1565.) The orders also constitute unpublished material, and

are therefore not citable for any reference. (Cal. Rules of Court, rule

8.1115(a); Rittiman v. Public Utilities

Com. (2022) 80 Cal.App.5th 1018, 1043

(footnote 18).)

Merits

1. Sixth Cause of Action: Fraudulent

Inducement—Concealment

Plaintiff's

sixth cause of action is based on presale concealment, alleging that Ford Motor knew of the 10R80 transmission defects, yet failed to disclose the information.

(Comp., ¶¶ 75-76.) Plaintiff alleges that the defects were non-public, internal company knowledge and that Ford Motor owed a duty to disclose the information but knowingly concealed the information. (Comp., ¶¶ 77-78.) Plaintiff allegedly would not have entered into the contract if the facts were disclosed. (Comp., ¶¶ 79-80.)

Ford

Motor contends that Plaintiff's sixth cause of action relies on alleged transmission defects not actually part of the subject vehicle. The complaint relies on a claim of a defective 10R80 transmission, while the subject vehicle contains a 10R60 transmission. Ford Motor argues that the knowledge basis from the Technical Service Bulletins for 10R80 equipped vehicles in no way relates to model year 2020 Ford Explorer vehicles fitted with 10R60 transmissions. Ford Motor thus contends that Plaintiff lacks any basis for a claim of pre-existing knowledge and reliance in the purchase decision.

"[T]he elements of

an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have

intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

There are “four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (Heliotis v. Schuman (1986) 181 Cal.App.3d 646, 651.) “[A] duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337.)

Ford Motor establishes the lack of the identified and relied upon 10R80 transmission in the complaint, as not part of the subject vehicle. (Declaration of Eric Reily, ¶¶ 5-6,

Compendium of Exhibits, Ex. B-C: Global

Online Access to Service Information System (GOASIS) Report.) Ford Motor denies

the existence of any Technical Service Bulletins issued for the vehicles fitted

with 10R60 transmissions, which would include the subject vehicle. (Reily

Decl., ¶ 7.) Ford Motor also includes purported copies of discovery responses by

Plaintiff identifying the Technical Service Bulletins as the basis of the

undisclosed knowledge, but said exhibit lacks any foundation or authentication.

(Compendium of Exhibits, Ex. E.)

Ford Motor meets its burden of showing that Plaintiff lacks evidence fraudulent

inducement—concealment based of the inclusion of a 10R80 transmission into the

subject vehicle. The vehicle lacks this transmission. Plaintiff lacks any

evidence of defects with the 10R60 transmission system actually placed in the

vehicle from any source, which would obligate Ford Motor to disclose known

defects to Plaintiff as a purchaser of the vehicle. Plaintiff therefore lacks any

basis of damages as result of relying on a claim based on a non-existent

transmission system in the subject vehicle. (Union Bank v. Superior Court

(1995) 31 Cal.App.4th 573, 593.)

Plaintiff in opposition

refuses to concede to the existence of the 10R60 in the subject vehicle, and

instead maintains that even if the 10R60 transmission constitutes the

transmission model in the vehicle, Technical Service Bulletins also addressed defects with the 10R60 transmission system. All purported evidence appears to rely on the allegations in the complaint and the inadmissible content contained in the request for judicial notice. The only admissible evidence presented in the form of the declaration of Plaintiff simply reiterates the allegations in the complaint regarding the failure to disclose any defects, and Plaintiff relying on the lack of any disclosure as material to the purchase decision. (Declaration of Irma Gonzalez.) Nothing in the declaration provides any proof of Technical Service Bulletins for 10R60 transmissions or that the subject vehicle utilized a 10R80 transmission instead of the represented 10R60 model. Plaintiff presents no admissible evidence in support of a 10R80 transmission in the vehicle, and no concealed 10R60 defective transmission information by Ford Motor. Plaintiff's declared reliance on a non-existent condition will not establish triable issues of material fact.

The court electronic

filing system shows no reply on file.

Plaintiff cannot

establish triable issues of material fact based on objections in the separate

statement, lack of citation and inclusion of any admissible evidence, and

speculation based on allegations in the complaint. (*Lyons v. Security Pacific National Bank*, *supra*, 40

Cal.App.4th at p. 1041.) Plaintiff therefore fails to raise any triable issues

of material fact. The motion for summary adjudication is GRANTED.

Economic

Loss Rule

Ford

Motor additionally challenges Plaintiff's sixth cause of action on grounds of

the economic loss rule. The First District, Division Four Court of Appeal in *Dhital*

v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828 determined that in

a contract case, a fraudulent inducement claim based in part on presale

concealment falls within an exception to the economic loss rule. (*Id.* at

727 ["Fraudulent inducement claims fall within an exception to the economic

loss rule recognized by our Supreme Court, and plaintiffs allege fraudulent

conduct that is independent of Nissan's alleged warranty breaches"].)

While

Plaintiff can pursue fraudulent concealment without a bar under the economic

loss rule pursuant to the articulated exception in *Dhital*, again, Plaintiff

lacks any actual evidence supporting the claim of non-disclosed material

information impacting the purchase decision. (*Ibid.*)

2. Seventh Cause of Action: Negligent

Repair

Upland

Ford challenges the negligence on grounds that the Plaintiff lacks any evidence of repairs performed below the industry standard. Plaintiff counters that the operative complaint sufficiently alleges negligence based on failed repair efforts. Plaintiff also cites to an unpublished District Court ruling, and the declaration of Plaintiff. The court electronic filing system shows no reply on file.

“The elements of any negligence cause of action are duty, breach of duty, proximate cause, and damages. (Peredia v. HR Mobile Services, Inc. (2018) 25 Cal.App.5th 680, 687.) The complaint alleges an undertaking of a duty to repair the vehicle, and the failure to complete the repairs to industry standards. (Comp., ¶¶ 85-89.)

Support for the motion consists of citation to the unverified complaint and the GOASIS report regarding the lack of existence of any Technical Service Bulletin for the 10R60 transmission. Ford also appears to rely on purported discovery responses. Even if the court accepted the content of the otherwise unfounded unauthenticated exhibits, nothing in the content of the responses sufficiently establishes a lack of evidence for failure to complete repairs within industry standards. Upland Ford therefore fails to shift the burden of proof regarding negligent repair. (See Union Bank v. Superior Court, supra, 31 Cal.App.4th

at p. 593.)

Even if Upland Ford met its burden, the Court determines that

Plaintiff meets her burden triable issues of material fact exist as to the

negligent repairs. (Gonzalez Decl., ¶¶ 8-10.) The motion for summary

adjudication is denied.

3. Punitive Damages

The

punitive damages claim only appears in paragraph h of the prayer. Ford Motor

merges the fraudulent inducement—concealment with the challenge to punitive

damages claim, presuming the entire claim relies on the fraud-based cause of

action. Plaintiff in opposition appears to agree with exclusive reliance on the

fraud cause of action in support of the punitive damages claim. The court

electronic filing system shows no reply on file.

Given that the punitive damages

claim apparently stems solely from the fraudulent inducement—concealment cause

of action, the motion for summary adjudication as to punitive damages is moot

given the Court's ruling granting summary adjudication as to the sixth cause of

action.